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File No.: EXP202302853

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 27, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The respondent is responsible for the website <https://amfos.es/>, a training academy of which the complainant is a client. The complainant alleges that the website does not provide information related to the processing of personal data, as it lacks a privacy policy or equivalent legal text.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent responded on April 3, 2023, stating "that the content and location of the legal texts on the website, the contact form, consent from visitors and users of the website, and the cookie banner have been reviewed." However, despite this review, it is true that clicking on the links: <https://amfos.es/privacidad/> and <https://amfos.es/cookies/> returns a "Fatal Error."

THIRD: On April 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

The security officer of the entity reports that the reason why it is not possible to access the content of the cookie policy or the data protection information on the website www.amfos.es, resulting in an error message, is that this website is undergoing changes to improve the speed and access to its various sections. To carry out these improvements, the legal texts of the legal notice, privacy policy, and cookie policy were removed. As a result, the message that appears is an error message.

Regarding the operational links to this information and the location from which it is accessed on the website, they inform that, after receiving the information request from the Agency, it was decided to deactivate access to the website <http://amfos.es/> until the renewal process of the page is completed and it can be fully displayed with all the necessary items of a page that complies with data protection regulations.

They attach a screenshot of the current state of the page, verifying that it is not accessible.

In light of the above, it is concluded that the website www.amfos.es is undergoing changes to improve speed and access to its various sections, and in this process, the legal texts of the legal notice, privacy policy, and cookie policy were removed. As a result, the message that appears is an error message. Upon receiving the request, they have deactivated access to the page entirely until the change is completed.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 28/09/2023, as stated in the acknowledgment of receipt in the file.

SIXTH: Once the deadline for submitting allegations had passed, it has been confirmed that no

allegations have been received from the respondent.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present proceeding,

PROVEN FACTS

FIRST: The website <https://amfos.es/>, belonging to a training academy of which the complainant is a client, does not provide information related to the processing of personal data, as it lacks a privacy policy or equivalent legal text.

SECOND: The respondent has responded to the transfer and information request on April 3, 2023. However, despite stating: "that the content and location of the legal texts on the website, the contact form, consent from visitors and users of the website, and the cookie banner have been reviewed," it is true that clicking on the links: <https://amfos.es/privacidad/> and <https://amfos.es/cookies/> returns a "Fatal Error."

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing,

as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

Classification and qualification of the infringement

In accordance with the proven facts at this stage of the resolution of the warning procedure, it is considered that the respondent is responsible for the website <https://amfos.es/>, a training academy of which the complainant is a client. And on that website, no information related to the processing of personal data is provided, as it lacks a privacy policy or equivalent legal text.

In light of the facts presented, a declaration of an infringement is agreed upon, attributable to the respondent, in accordance with the provisions of Article 13 of the GDPR, transcribed in the previous section.

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For the purposes of the statute of limitations for offenses, the alleged offense is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Offenses considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and will be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

IV

Proposal for a warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third section that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council,

of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.”

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In this case, given the circumstances resulting from the instruction of this procedure and following the criteria of the indicated provisions, this authority deems it appropriate to issue a warning to the respondent party.

IV

Adoption of measures

In accordance with the provisions of Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...”, the controller is required to demonstrate to this Agency, within one month:

- that they have published the corresponding privacy policy on their website.
- that this privacy policy complies with the legally established requirements and specifies the ways in which the website collects, uses, discloses, and manages the data of visitors and customers.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency

RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., pursuant to Article 58.2.d) of the GDPR, to demonstrate to this Agency, within ONE MONTH:

- That they have published the corresponding privacy policy on their website.
- That this privacy policy complies with the legally established requirements and specifies the ways in which the website collects, uses, discloses, and manages the data of visitors and customers.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the

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Interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the additional provision four of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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